

Ankur Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 July 2022 · WRIT - C No. 19232 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A writ seeking quashing of a recovery citation, stay of coercive recovery pending objection to a provisional assessment, and restoration of supply was disposed of without any opinion on merits. The consumer was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing; coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Ankur Gupta, a consumer, filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 18 May 2022 issued by the distribution licensee, a stay of coercive recovery until his objection to the provisional assessment was decided, and mandamus to restore his electricity connection. Counsel for the Power Distribution Corporation stated on instructions that the petitioner might file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment; stay of recovery citation

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ by granting liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing authority (respondent no. 4) within four weeks, to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action pursuant to the impugned demand was stayed for eight weeks or until disposal of the objection, whichever was earlier. Restoration of supply was not directed. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the recovery citation was closed by relegating the consumer to the Para 6.8 objection, without a merits grant or refusal on the demand or on restoration of supply. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Liberty was given to submit the Para 6.8 objection for time-bound disposal after hearing, with a limited stay of coercive action on the impugned demand pending that disposal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 18 MAY 2022 AND THE UNDERLYING PROVISIONAL ASSESSMENT

The Court expressly declined to opine on merits. ¶ 1

NOT DECIDED — RESTORATION OF THE PETITIONER'S ELECTRICITY CONNECTION

Mandamus to restore supply was prayed for but not granted. ¶ 1

